

FIRST AMENDMENT TO COMMERCIAL LEASE AGREEMENT

Store ID: S001

THIS FIRST AMENDMENT TO COMMERCIAL LEASE AGREEMENT (this "Amendment") is made and entered into as of January 15, 2024, by and between **BOSTON PROPERTIES MANAGEMENT LLC**, a Massachusetts limited liability company ("Landlord"), and **SKYLINE STORES**, a Delaware corporation ("Tenant").

RECITALS

WHEREAS, Landlord and Tenant entered into that certain Commercial Lease Agreement dated March 1, 2015 (the "Original Lease"), for approximately 35,000 square feet of retail space located at 123 Main Street, Boston, Massachusetts 02118;

WHEREAS, the Original Lease is scheduled to expire on March 14, 2025;

WHEREAS, Tenant desires to extend the term of the Original Lease and make certain other modifications; and

WHEREAS, Landlord is willing to extend the term and make such modifications upon the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

AMENDMENTS

1. LEASE EXTENSION

The Original Lease term is hereby extended for an additional **FIVE (5) YEARS**, commencing on March 15, 2025 (the "Extension Commencement Date") and expiring on March 14, 2030 (the "Extended Expiration Date").

2. BASE RENT FOR EXTENSION TERM

Base Rent during the Extension Term shall be as follows:

Extension Year	Annual Rent	Monthly Rent	PSF/Year
Year 11 (2025-2026)	\$1,137,500	\$94,792	\$32.50
Year 12 (2026-2027)	\$1,172,500	\$97,708	\$33.50
Year 13 (2027-2028)	\$1,207,500	\$100,625	\$34.50
Year 14 (2028-2029)	\$1,242,500	\$103,542	\$35.50
Year 15 (2029-2030)	\$1,277,500	\$106,458	\$36.50

3. ADDITIONAL RENEWAL OPTION

Tenant shall have one (1) additional option to renew the Lease for a further term of five (5) years, provided:

- Tenant is not in default under the Lease
- Tenant provides written notice at least 180 days prior to the Extended Expiration Date
- Base Rent for the additional renewal term shall be 95% of fair market rent as of the renewal commencement date

4. CAPITAL IMPROVEMENTS ALLOWANCE

Landlord shall provide Tenant with a capital improvements allowance of **\$525,000** (\$15.00 per square foot) to be used for renovations and improvements to the Premises during the Extension Term. Such allowance shall be disbursed upon completion of approved work and submission of proper documentation.

5. OPERATING EXPENSE CAP

Notwithstanding anything in the Original Lease to the contrary, during the Extension Term, increases in Tenant's Proportionate Share of Operating Expenses (excluding taxes, insurance, and utilities) shall be capped at 3% per annum on a cumulative basis.

GENERAL PROVISIONS

6. RATIFICATION

Except as specifically modified herein, all terms, covenants, and conditions of the Original Lease remain in full force and effect and are hereby ratified and confirmed.

7. DEFINED TERMS

All capitalized terms used herein and not otherwise defined shall have the meanings ascribed to them in the Original Lease.

8. GOVERNING LAW

This Amendment shall be governed by the laws of the Commonwealth of Massachusetts.

9. COUNTERPARTS

This Amendment may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the parties have executed this Amendment as of the date first written above.

LANDLORD:

BOSTON PROPERTIES MANAGEMENT LLC

By: _____

Name: Michael Harrison

Title: Senior Vice President

Date: January 15, 2024

TENANT:

SKYLINE STORES

By: _____

Name: Jennifer Martinez

Title: Chief Real Estate Officer

Date: January 15, 2024

STATE OF MASSACHUSETTS

COUNTY OF SUFFOLK

On this 15th day of January, 2024, before me personally appeared Michael Harrison, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his authorized capacity, and that by his signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of Massachusetts that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Notary Public

STATE OF TEXAS
COUNTY OF DALLAS

On this 15th day of January, 2024, before me personally appeared Jennifer Martinez, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that she executed the same in her authorized capacity, and that by her signature on the instrument the person, or the entity upon behalf of which the person acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of Texas that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Notary Public